

Amendment No. 1 to SB0163

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 163*

House Bill No. 468

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-103(b)(3), is amended by deleting the subdivision and substituting:

(3) Reckless endangerment by discharging a firearm or antique firearm into a habitation, as defined by § 39-14-401, or motor vehicle, as defined by § 55-1-103, is a Class C felony, unless the habitation or motor vehicle was unoccupied at the time of the offense, in which event the offense is a Class D felony.

SECTION 2. Tennessee Code Annotated, Section 39-13-103, is amended by adding the following as a new subsection:

(c) If conduct that is a violation of subdivision (b)(3) is also a violation of § 39-13-102, or any other criminal offense, then the offense may be prosecuted under any of the applicable statutes.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.